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Legislative Update

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The Legislative Update tracks legislation related to alternative dispute resolution proposed and enacted in state legislatures nationwide. Under the guidance of the Associate Editor-in-Chief, Associate Members of the *Journal of Dispute Resolution* prepared this update. It includes articles examining specific bills and broader legislative trends across various states that the authors found particularly significant and impactful.[**]

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I. Legislative Focus Section*

In this section, the authors examine trends across multiple states' bills, as well as legislation that employs alternative dispute resolution in innovative or nontraditional ways.

THE NEUTRAL NEIGHBOR: WELCOME THE OMBUDSMAN

Bill Number:	Florida House Bill 137
Bill Status:	Failed on June 16, 2025.[1]
Bill Number:	Florida Senate Bill 120
Bill Status:	Failed on June 16, 2025.[2]
Bill Number:	Georgia Senate Bill 107
Bill Status:	Introduced on February 5, 2025 – Died in Chamber.[3]
Bill Number:	Hawaii House Bill 837
Bill Status:	Introduced on January 23, 2025 – Died in Committee.[4]
Bill Number:	Hawaii House Bill 890
Bill Status:	Introduced on January 23, 2025 – Died in Committee.[5]
Bill Number:	Hawaii Senate Bill 1265
Bill Status:	Introduced on January 23, 2025 – Died in Committee.[6]
Bill Number:	Hawaii Senate Bill 1498
Bill Status:	Introduced on January 23, 2025 – Died in Committee.[7]

Summary (all): These bills show an attempt by some states to pass legislation to create an Ombudsman's Office for Community Associations. The ombudsman would serve as an accessible resource for unit owners, homeowners, and community associations seeking dispute resolution. Florida's House Bill 137 and Senate Bill 120 would create this office for Homeowner Associations. Georgia's Senate Bill 107 would create this office for Community Associations. Hawaii's House Bill 890 and Senate

1. H.B. 137, 2025 Leg., Gen. Sess. (Fla. 2025).
2. S.B. 120, 2025 Leg., Gen. Sess. (Fla. 2025).
3. S.B. 107, 2025-2026, Gen. Assemb., Reg. Sess. (Ga. 2025).
4. H.B. 837, 2025 Leg., Gen. Sess. (Haw. 2025).
5. H.B. 890, 2025 Leg., Gen. Sess. (Haw. 2025).
6. S.B. 1265, 2025 Leg., Gen. Sess. (Haw. 2025).
7. S.B. 1498, 2025 Leg., Gen. Sess. (Haw. 2025).

Bill 1265 would create this office for Condominium Associations while Hawaii's House Bill 837 and Senate Bill 1498 would create it for Homeowner Associations.

I. INTRODUCTION

As of 2024, there are approximately 77.1 million residents living in community associations in the United States.[8] Roughly 22.5 percent of United States citizens live in the complex ecosystem of community living—where different people have shared spaces.[9] This number has continued to increase steadily since the 1970s.[10] In this kind of environment, conflict is inevitable. Recognizing the need for dispute resolution, some states have adopted statutory language requiring alternative dispute resolution ("ADR") and some established other means of pursuing it.[11] Of the fifteen states recognizing this need,[12] five of them have something called an ombudsman office in some form.[13] An ombudsman is an independent, neutral service that resolves disputes.[14] Ombudsmen additionally offer insights and recommendations to improve the resolution process.[15]

Recently, Florida (which already had an ombudsman office for condominiums),[16] Georgia, and Hawaii (which already had statutory language mandating ADR)[17] have attempted to invite this neutral neighbor to help settle more disputes in community associations.[18] This paper examines the push for community association ombudsmen, analyzes the proposed state legislation, and considers the broader implications of welcoming the ombudsman in shared communities.

II. THE NEUTRAL NEIGHBOR

There are two main types of ombudsmen, the "organizational ombudsman" and the "classical ombudsman."[19] Both are neutral independent figures whose role is

8. *2024 U.S. National and State Statistical Review*, FOUNDATION FOR COMMUNITY ASSOCIATION RESEARCH (2025), https:/foundation.caionline.org/wp-content/uploads/2025/05/FBStatsReview2024-V4.pdf (last visited July 21, 2025).

9. *Population Clock*, U.S. CENSUS BUREAU, https://www.census.gov/popclock/ (last visited July 21, 2025).

10. *2024 U.S. National and State Statistical Review*, *supra* note 8.

11. *Dispute Resolution for Residents*, COMMUNITY ASSOC. INSTITUTE, https://www.caionline.org/advocacy/advocacy-priorities-overview/dispute-resolution-for-residents/ (last visited July 21, 2025).

12. *Id.* Arizona, California, Colorado, Delaware, Florida, Hawaii, Illinois, Maryland, Michigan, Nevada, New Jersey, New Mexico, Pennsylvania, South Carolina, and Virginia.

13. *Id.* Delaware, Florida, Illinois, Nevada, and Virginia, have ombudsman offices for different community associations.

14. *What is an ombudsman*, OMBUDSMAN ASSOC., https://www.ombudsmanassociation.org/what-ombudsman (last visited July 21, 2025).

15. *Id.*

16. *Dispute Resolution for Residents*, *supra* note 11.

17. *See Id*; *see also* HAW. REV. STAT. ANN. §§ 514B–161; HAW. REV. STAT. ANN. §§ 514B–162.

18. *See* H.B. 137, 2025 Leg., Gen. Sess. (Fla. 2025); S.B. 120, 2025 Leg., Gen. Sess. (Fla. 2025); S.B. 107, 2025-2026, Gen. Assemb., Reg. Sess. (Ga. 2025); H.B. 837, 2025 Leg., Gen. Sess. (Haw. 2025); H.B. 890, 2025 Leg., Gen. Sess. (Haw. 2025); S.B. 1265, 2025 Leg., Gen. Sess. (Haw. 2025); S.B. 1498, 2025 Leg., Gen. Sess. (Haw. 2025).

19. Danny McFadden, *The Organizational Ombudsman*, 11 J. COMP. L. 135, 135 (2016).

addressing complaints and promoting fairness.[20] However, they differ in structure and function.[21] An organizational ombudsman is appointed within a specific organization to resolve disputes raised by employees, managers, students, and external clients in an informal setting.[22] The classical ombudsman is appointed by a legislature to serve the public interest.[23] Their primary role is to investigate formal complaints, ensure compliance with the rule of law, and protect individuals from unfair decisions.[24] The type of ombudsman these bills seek to incorporate is a more classical model.

A. Florida House Bill 137 and Senate Bill 120

Florida's House Bill 137 and Senate Bill 120 sought to add an Office of Homeowners' Association Ombudsman.[25] The Office would be within the Division of Florida Condominiums, Timeshares, and Mobile Homes.[26] The ombudsman is Governor appointed and must be an attorney barred in the state.[27] The ombudsman, or any full-time employee at the office, is prohibited from a number of actions including engaging in other business that conflicts with the work at the office or from holding any position within any political party or committee.[28] The ombudsman would have full access to files maintained by the division and prepare reports or recommendations to the executive or legislature for legislation.[29]

The ADR relevant duties include acting as a third-party neutral between the division, association boards, and parcel owners.[30] The ombudsman is tasked with developing policies and educating community members regarding their rights.[31] When disputes arise, they review procedures, can make recommendations, and promote voluntary meetings where they act as the bridge between parties.[32] They are intended to serve as a means of resolution before going through a more formal process available to both the parcel owners and the board.[33]

B. Georgia Senate Bill 107

Georgia's stand-alone Senate Bill 107, seeking to create the Office of the Community Association Ombudsman within the Department of Community Affairs, requires the department commissioner to appoint the ombudsman rather than the Governor.[34] The bill has very similar requirements placed upon the

20. *Id.* at 135–37 (providing a chart breaking down the roles and characteristics of each).
21. *Id.* at 135.
22. *Id.*
23. *Id.*
24. *Id.* at 136.
25. H.B. 137, 2025 Leg., Gen. Sess. (Fla. 2025); S.B. 120, 2025 Leg., Gen. Sess. (Fla. 2025).
26. *Id.*
27. *Id.*
28. *Id.*
29. *Id.*
30. *Id.*
31. Fla. H.B. 137; Fla. S.B. 120.
32. *Id.*
33. *Id.*
34. S.B. 107, 2025-2026, Gen. Assemb., Reg. Sess. (Ga. 2025).

ombudsman and their employees as the Florida bills.[35] The ombudsman shall act as a third-party between unit owners and community associations.[36] The Georgia bill has similar ADR duties like encouraging and facilitating voluntary meetings and assisting in disputes.[37] However, the Georgia bill specifies that the ombudsman can assist in mediation and issue opinions regarding the disputes along with their recommendations.[38]

Georgia's Senate Bill 107 further includes a provision detailing complaint submissions.[39] On top of their active ADR duties, the ombudsman shall make a form readily available for submitting complaints.[40] This form includes a section that allows the unit owner or association to detail the nature of the issue, actions they have taken, communications that have occurred, and their desired remedy.[41] The bill provides that upon receipt, the ombudsman will deliver the complaint to the other party and give them the ability to respond.[42] This is also the point where the investigation begins.[43] The ombudsman still is required to offer mediation and can issue opinions or recommendations on the matter.[44] The bill provides further explanation on what these may include, "without limitation, [the ombudsman can include] a proposed course of action, including but not limited to, waiver of any fines imposed by a community association on a unit owner."[45] The board would then vote to approve or reject the recommendation, following a specific procedure in doing so.[46] All complaints received are included in a report and displayed on the ombudsman's public website.[47]

C. Hawaii House Bill 837; House Bill 890; Senate Bill 1265; and Senate Bill 1498

Hawaii had numerous bills looking to include an ombudsman office.[48] Hawaii takes an approach that is a combination of the other states when it comes to appointment, requiring the appointment by the director and approved by the governor.[49] While the Hawaii bills mostly resemble the previously mentioned bills, they hone in on the unit owners, explicitly authorizing the ombudsman to give guidance to them.[50] These bills further evidence this point as the first section includes: "The legislature finds that while homeowner association self-governance

35. *Compare id.* (licensed in the state; prohibited from involvement in business conflicting with work and from holding any position within a political party or committee, etc.), *with* H.B. 137, 2025 Leg., Gen. Sess. (Fla. 2025), *and* S.B. 120, 2025 Leg., Gen. Sess. (Fla. 2025).
36. S.B. 107, 2025–2026, Gen. Assemb., Reg. Sess. (Ga. 2025).
37. *Id.*
38. *Id.*
39. *Id.*
40. *Id.*
41. *Id.*
42. Ga. S.B. 107.
43. *Id.*
44. *Id.*
45. *Id.*
46. *See id.*
47. *Id.*
48. H.B. 837, 2025 Leg., Gen. Sess. (Haw. 2025); H.B. 890, 2025 Leg., Gen. Sess. (Haw. 2025); S.B. 1265, 2025 Leg., Gen. Sess. (Haw. 2025); S.B. 1498, 2025 Leg., Gen. Sess. (Haw. 2025).
49. *Id.*
50. *Id.*

can be successful, there have been many cases of abuse of power and other acts of malfeasance by certain association boards, association management, managing agents, and association attorneys."[51] To support this assertion, the bills point out that leading insurance professionals found Hawaii has the highest number of association directors' and officers' liability claims in the nation.[52] This is a concerning statistic considering that, as the bills state, Hawaii has a small number of associations compared to other states.[53] The bills specifically on condominium associations step further:

> The legislature also finds that a central enforcement body is needed to address systemic problems faced by many condominium owners who are subjected to retribution and retaliation from boards and their members, association management, managing agents and their employees, and others representing the association. This retaliation harasses owners and impacts them emotionally and financially, with unwarranted and improper fines, assessments, legal costs, and foreclosures.[54]

III. WELCOME THE OMBUDSMAN

The driving forces behind the Hawaii bills are not new; they have been around for over a decade.[55] Slowly, but surely, states have begun responding to these concerns by creating ombudsman offices.[56] The idea is that when community associations decide to fine residents for things like painting their house blue or not cutting their grass, a neutral party to help mediate issues is a call away.[57] Nevada houses the oldest ombudsman office, and asserts that it gives parties a cost effective option that keeps parties from suing each other,[58] thus preventing backyard arguments from becoming wars.[59] Ombudsmen inform residents about their rights and obligations.[60] As a result, ombudsmen protect individuals from the rules in associations that are inherently abusive and oppressive.[61] However, Ombudsmen in Virginia claim to mostly deal with issues involving transparency, not abuse.[62]

There is a concern that these offices could end up as just another hurdle for residents seeking help.[63] They can impose additional financial strain on associations, expand state involvement, and complicate the dispute resolution

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51. *Id.* A similar statement is made regarding condominium associations in their respective bills.

52. *Id.*

53. *Id.*

54. H.B. 890, 2025 Leg., Gen. Sess. (Haw. 2025); S.B. 1265, 2025 Leg., Gen. Sess. (Haw. 2025).

55. Jenni Bergal, *When Residents Clash with Homeowner Associations, Some States Step In*, STATELINE (Oct. 5, 2015).

56. *Id.*

57. *Id.*

58. *Id.*

59. Paula A. Franzese & Steven Siegel, *Trust and Community: The Common Interest Community as Metaphor and Paradox*, 72 Mo. L. Rev. 1111, 1157 (2007).

60. Bergal, *supra* note 55.

61. Walter N. Graff, *What's Wrong with Homeowner Associations?*, 72 HENNEPIN LAW. 10, 10 (2003).

62. Bergal, *supra* note 55.

63. *Will an HOA Ombudsman Help or Hinder Governance?,* AFFINITY, (Feb. 5, 2025).

process.[64] The Community Associations Institute in their 2024 report stated, "overall these programs have a negligible impact on a small fraction of communities across the country."[65] It suggests that it may be more effective to foster direct communication between residents and their boards instead of going through ombudsman offices established by the state.[66] It may be important to note that the institute makes this assertion while also calling the individuals bringing many of the complaints "uncooperative homeowners who choose to ignore community rules and policies."[67]

IV. CONCLUSION

As time goes on, more ombudsman bills continue to be introduced.[68] In 2024, Florida, Georgia, Hawaii, Illinois, Maryland, Massachusetts, Minnesota, New Hampshire, New Jersey, and New York, all introduced legislation for new ombudsman offices.[69] Many states have been unsuccessful,[70] perhaps explaining a lack of data and research regarding the effectiveness of these offices. For the time being, Delaware, Florida, Illinois, Nevada, and Virginia stand as the only states with ombudsman offices in community associations.[71] States like Florida, Georgia, and Hawaii are expected to continue legislative efforts to curb potential abuses of power by associations, with ombudsman offices being the favored tool providing oversight and support for residents. These measures show a growing state interest in having a role in dispute resolution between residents and boards. However, community associations retort that these offices will do nothing more than confuse and burden the dispute resolution process where other options would be more fruitful. As states contemplate inviting this neutral neighbor into their shared communities, they will have tread the sidewalk with caution and consider whether these ombudsmen will resolve disputes or create new ones.

SHOULD ONE PERSON DECIDE HOW MUCH THE LOCAL FIREMEN GET PAID? STATES' DIVERGING APPROACHES TO PUBLIC SECTOR LABOR DISPUTES[+]

Bill Number: Rhode Island Senate Bill 1059
Bill Status: Engrossed on June 4, 2025[72]

64. *Id.*; *but see* Stephanie Minasian-Koncewicz, *HOA Fees and Membership by State*, THIS OLD HOUSE (Dec. 12, 2024). Interestingly, the average monthly HOA fee in states without an ombudsman office is $319.49 while the average fee in states with ombudsman office is $318.80.

65. *Report on Offices of Community Association Ombudsman*, COMMUNITY ASSOC. INSTITUTE 1, 13 (October 23, 2024).

66. *Id.*

67. *Id.* at 4.

68. *See* H.B. 137, 2025 Leg., Gen. Sess. (Fla. 2025); S.B. 120, 2025 Leg., Gen. Sess. (Fla. 2025); S.B. 107, 2025-2026, Gen. Assemb., Reg. Sess. (Ga. 2025); H.B. 837, 2025 Leg., Gen. Sess. (Haw. 2025); H.B. 890, 2025 Leg., Gen. Sess. (Haw. 2025); S.B. 1265, 2025 Leg., Gen. Sess. (Haw. 2025); S.B. 1498, 2025 Leg., Gen. Sess. (Haw. 2025).

69. Phoebe E. Neseth, *Update: First Quarter Community Association State Legislative Trends*, COMMUNITY ASSOC. INSTITUTE (Mar. 27, 2024).

70. *Report on Offices of Community Association Ombudsman*, *supra* note 65, at 11.

71. *Dispute Resolution for Residents*, *supra* note 11.

72. S.B. 1059, 2025 Gen. Assemb., Jan. Sess. (R.I. 2025).

Bill Number: Utah House Bill 267
Bill Status: Effective July 1, 2025[73]

I. INTRODUCTION

Unions, both private- and public-sector, utilize their control over the labor supply to obtain better compensation in the form of increased wages and fringe benefits.[74] Through collective bargaining, labor and management representatives cooperate to achieve mutually acceptable contracts.[75] The landscape of public-sector collective bargaining remains "strangely unsettled,"[76] however, and state legislatures across the country are amending their laws governing resolution of public-sector labor disputes.[77] Rhode Island and Utah offer two contrasting examples.

A. History of Collective Bargaining in the Public Sector

The majority of public sector contracts are the result of collective bargaining.[78] Collective bargaining is the process by which employees, represented collectively through their unions, negotiate the terms and conditions of their employment contract (known as the Collective Bargaining Agreement ("CBA")) with their employer.[79] Collective bargaining can help avoid the socially destructive warfare of strikes and boycotts by union-represented public workers,[80] and, in some states, CBAs utilize arbitration as a last-resort to reach an agreement, in exchange for the workers agreeing not to strike.[81]

In 1959, Wisconsin enacted the first state law authorizing public-sector bargaining.[82] Later amended to provide for binding, mandatory interest arbitration, this law initiated attempts by other state governments to create alternative forms of dispute resolution for unionized, public-sector employees.[83] By the end of the 1970s, a majority of states adopted laws similar to Wisconsin's, leading to a rapid increase in public-sector unionization.

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73. H.B. 267, State Leg., 2025 Gen. Sess. (Utah 2025).

74. Charles B. Craver, *The Use of Alternative Dispute Resolution Techniques to Resolve Public Sector Bargaining Disputes*, 28 OHIO ST. J. ON DISP. RESOL. 45, 47 (2013).

75. *Id.* at 48

76. Joseph Slater, *The Strangely Unsettled State of Public-Sector Labor in the Past Thirty Years*, 30 HOFSTRA LAB. & EMP. L.J. 511, 513 (2013).

77. *See id.* at 512–13.

78. Craver, *supra* note 79, at 48.

79. Raquel Muniz, Note, *You Are Now Entering the School Zone, Proceed with Caution: Educators, Arbitration, & Children's Rights*, 9 Y.B. ON ARB. & MEDIATION 197, 200 (2017).

80. Leo Kanowitz, *Alternative Dispute Resolution and the Public Interest: The Arbitration Experience*, 38 HASTINGS L.J. 239, 248 (1987); Ann C. Hodges, *The Steelworkers Trilogy in the Public Sector*, CHI.-KENT L. REV. 631, 663–64.

81. *See* Michael Carrell & Richard Bales, *Considering Final Offer Arbitration to Resolve Public Sector Impasses in Times of Concession Bargaining*, 28 OHIO ST. J. ON DISP. RESOL. 1, 23 (2013) ("Currently fourteen states have codified final-offer arbitration . . . and several of those are limited to certain public employee groups. In 2011, bills providing for final-offer arbitration for teachers were introduced in three states.").

82. Slater, *supra* note 81, at 516.

83. *Id.*

In 1960, the *Steelworkers Trilogy* of Supreme Court decisions addressed the use of arbitration to resolve private-sector disputes.[84] The Court's decisions endorsed the use of private arbitration, and it set a precedent of deferring to the findings of arbitrators.[85] Although the Trilogy did not lead to a nationwide policy applicable to the public sector, the various states tend to use standards similar to those within the Trilogy.[86] With the increasing use of arbitration in the public sector, the Trilogy's deference to arbitration in the private sector has led to an issue of the applicability of the decision's rationale to the public sector.[87] While some courts have fully embraced the Trilogy's deferential standards for public sector arbitration,[88] others have been less willing to do so, expressing concerns related to delegation of government authority and public policy considerations.[89]

B. The Benefits of Collective Bargaining Agreements

The public and private sector benefits of collective bargaining are the same.[90] The most obvious benefit is that collective bargaining is a substitute for strikes and other disruptions caused by labor disputes.[91] A collective bargaining agreement, whether in the public or private sector, "creates a system of self-government and empowers the arbitrator to resolve disputes based on the intent of the parties as reflected in the contract language, the practices of the parties and the industry, and the effect of a decision on morale and productivity."[92] This process provides a "safety valve" for ventilating issues that might otherwise escalate into wildcat strikes or job actions.[93] The availability of grievance and arbitration procedures helps establish employee faith in the bargaining process, thereby furthering the goal of industrial peace.[94]

C. The Challenges of Arbitration in Collective Bargaining for Public Sector Workers

The general criticisms of alternative dispute resolution ("ADR") are myriad: coercing parties to consent to an agreement, the absence of a trial and judgment makes judicial involvement problematic, and it may lead to unjust resolution.[95] These criticisms are applicable to 'rights' disputes, but collective bargaining is

84. *Id.*
85. Hodges, *supra* note 85, at 631.
86. James A.W. Shaw, *The Judiciary's Efforts to Save Public Employers from the Bargains They Have Made: The Non-Delegability and Against Public-Policy Doctrines*, 28 HOFSTRA LAB. & EMP. L.J. 363, 367 (2011).
87. Hodges, *supra* note 85, at 633.
88. *Id.*
89. *Id.*
90. *Id.* at 663–64.
91. *Id.*
92. *Id.* at 666.
93. Hodges, *supra* note 85, at 666.
94. *Id.*
95. Kanowitz, *supra* note 85, at 240; *see generally* Owen Fizz, *Against Settlement*, 93 YALE L.J. 1073 (1984) (offering a detailed critique of ADR).

designed for resolving disputes involving "interests" rather than "rights."[96] Because collective bargaining is not a dispute over legal rights, it is often not amenable to judicial resolution.[97] 'Rights' disputes involve two parties claiming rights under an existing contract or law.[98] For example, A contracts with B, and B sues A for breaching the terms of a contract. "Interests" disputes involve two parties that are negotiating an agreement to define their rights and that have reached an impasse.[99] For example, A wants to contract with B, and A and B negotiate over the terms of the contract. Therefore, the role of the decision-maker in an interest dispute is helping the parties establish the terms of their future agreement.[100]

The first main challenge of arbitrating public-sector labor disputes is deciding the amount of authority that should be allocated to the arbitrator or arbitration panel.[101] Public employers have avoided arbitration in some cases by arguing that the sovereign cannot delegate its decision making power over sovereign issues.[102] When public employers seek to vacate an award, they may argue that the arbitrator has "usurped the employer's exclusive authority to make the decision under review.[103] Occasionally, courts have vacated an arbitration award ordering reinstatement or appointment of an employees, based on the theory that the arbitrator exceeded their authority by intruding upon the public employer's exclusive, statutory rights.[104]

The concerns of the non-delegation doctrine are heightened in situations where the lawfulness of the terms of a potential collective bargaining agreement relies on statutory interpretation. Mandatory arbitration delegates that authority to a non-elected arbiter or board of arbiters, rather than duly-elected judges and legislators entrusted with interpreting and enacting public law.[105] On the other hand, some courts have held that a state's enforcement of mandatory arbitration represents the State itself acquiescing to that decision,[106] and others have compared the delegation of decision making authority in arbitration to the delegation of authority by Congress to federal agencies.[107]

96. Craver, *supra* note 79, at 296.
97. *Id.*
98. *Id.*
99. *Id.*
100. *Id.*
101. *See, e.g.,* Kanowitz, *supra* note 85, at 297–300 (discussing *Dearborn Fire Fighters Union Local No. 412 v. City of Deaborn*, 231, N.W.2d 226, 228 (Mich. 1975) ("The arbitrator/chairman of the panel is entrusted with the authority to decide major questions of public policy concerning the conditions of public employment, the levels and standards of public services and the allocation of public revenues. Those questions are legislative and political, not judicial or quasi-judicial. The act is structured to insulate the arbitrator/chairman's decision from review in the political process. It is not intended that he be, nor is he in fact, accountable within the political process for his decision. This is not consonant with the constitutional exercise of political power in a representative democracy,")).
102. Hodges, *supra* note 85, at 633.
103. Shaw, *supra* note 91, at 377.
104. *Id.* at 377–78.
105. Hodges, *supra* note 85, at 674.
106. *Id.* at 667.
107. *Id.* at 677–79.

The second primary challenge associated with mandatory arbitration in public-sector labor disputes is the ability of public employers to overturn an adverse arbitration award because of a sympathetic course system.[108]

The ability to vacate an arbitrator's award functionally only works for public employers.[109] Courts applying the public policy exception tend to require that an arbitration award reinstating an employee violates public policy "to such an extent that the employee's conduct would have required dismissal."[110] Oftentimes, employers can convince a court to vacate pro-employee decisions; by contrast, unions often lack meaningful recourse to challenge unfavorable arbitration outcomes.[111] For example, an arbitration award that reinstates an employee fired for drug use might be thrown out on public policy grounds, but an award upholding the discharge of an employee for drug use cannot be challenged on the grounds of a public policy requiring that employers give employees a second chance.[112]

Courts can also abuse the public policy exception when they fear challenging the judgment of a public employer, question the amenability of an employee to discipline, or think that the employee's alleged misconduct is so outrageous that the employee does not deserve reinstatement.[113] Arbitration can depoliticize public-sector employment actions by concluding workplace problems that raise political issues,[114] but when courts vacate an arbitration award, they re-politicize the workplace by "unresolving" the dispute and exacerbating the issues.[115]

These abuses by public employers and judges could lead to the conclusion that negotiated agreements between public employers and employees "are becoming less and less meaningful, whether this is because a court has found a public policy that precludes [a] union from enjoying the benefit of the bargain or because of courts finding statutory conflicts where none have before existed."[116]

The challenges of arbitrating public-sector labor disputes manifest differently across jurisdictions depending on their unique legal frameworks. Thus, as part of public-sector labor dispute resolution, states have utilized markedly different approaches, reflecting divergent philosophies regarding public employee collective bargaining rights and the role of arbitration.

II. THE ROLE OF ALTERNATIVE DISPUTE RESOLUTION IN PUBLIC LABOR DISPUTES

These differing approaches can broadly be categorized by their level of support for collective bargaining and arbitration, exemplified by states like Rhode Island, which generally recognizes strong worker rights and dispute resolution mechanisms, versus states like Utah and Texas, which historically or currently do

108. *See generally* Shaw, *supra* note 91, at 363 (describing how public employers utilize two doctrines to sway jurists already deferential to them).
109. *Id.* at 366.
110. *Id.* at 375.
111. *Id.* at 366.
112. *Id.* at 366–67.
113. *Id.* at 377.
114. Shaw, *supra* note 91, at 384.
115. *Id.* at 384.
116. *Id.* at 384.

not extend the same protections or may even explicitly prohibit collective bargaining for certain public employees.

A. The Rhode Island Approach

Rhode Island's approach aligns with a philosophy recognizing the right of state employees to organizes and designate representatives for collective bargaining over wages, hours, and other conditions of employment. S.B. 1059 tries to balance recognition of a public policy that affords municipal employees the right to organize, be represented, negotiate, and bargain collectively over wages, hours, and other terms of employment[117] with Rhode Island's state law prohibiting municipal employees from engaging in strikes or work stoppages.[118] Arbitration serves as a "substitute for strikes and other disruptions of harmonious labor relations."

To facilitate the resolution of impasses, the bill affirms the use of interest arbitration, granting arbitrators significant authority to adjudicate disputes between public employers and employees, including matters related to the expenditures of public monies.[119] The delegation of authority to arbitrators aligns with past Rhode Island Supreme Court rulings that characterized part-designated arbitration panel members as "public officials" performing a "public function" with the "legislative 'power to fix the salaries of public employees . . . without control or supervision from any superior.'"[120] Thus, the Court has held, delegation of authority to adjudicate pay disputes to arbitrators is not an unconstitutional delegation of legislative power to private persons.[121]

In conducting hearings and rendering decisions, S.B. 1059 mandates that arbitrators consider specific factors for a "prompt, peaceful and just settlement."[122] The factors include comparisons of wages, hours, and conditions with similar employees in comparable communities or private industry, the peculiarities of employment such as hazards and qualifications, the public interest, the financial ability of the municipality, and any stipulations made by the parties.[123]

B. The Utah Approach

In stark contrast to Rhode Island, Utah has moved to significantly restrict the ability of public workers to collectively bargain.[124] While H.B. 267 technically preserves public sector unions in Utah for firefighters, police officers, and teachers,[125] the bill bans any state entity, including municipal organizations, from recognizing the union as a bargaining agent.[126] This prohibits public employers from entering into any CBA with a public sector union.[127] In addition, public sector

117. R.I. S.B. 1059.
118. *Id.*
119. *Id.*
120. *Id.*
121. *Id.*
122. *Id.*
123. R.I. S.B. 1059.
124. Utah H.B. 267.
125. *Id.*
126. *Id.*
127. *Id.*

employees may now opt out of paying union dues as well.[128] With passage of H.B. 267, Utah joined South Carolina and North Carolina as the only states that ban collective bargaining outright for *all* public employees, including firefighters, teachers, and police officers.[129]

C. Future Considerations

As the Rhode Island legislation shows, there are multiple potential avenues to reform the collective bargaining process for public-sector labor disputes. A central focus of any solution should be on how to balance the imperative of maintaining essential public services and accountability with the fundamental rights of public employees to organize and bargain collectively. This balance is especially critical given the inherent power dynamics in public-sector labor disputes, where unions often have the most to lose.

There are several considerations that a state should balance when crafting its own legislation regarding resolution of public-sector labor disputes. The first consideration is the delegation of authority to a potential arbitrator. Legislators worried that legislation like Rhode Island's hands over too much power to private arbitrators can look to the case of *Dearborn Fire Fighters Union Local No. 412 v. City of Dearborn*,[130] where the Michigan Supreme Court's decision led to the Michigan legislature amending the public-sector collective bargaining process by requiring that the arbitration panel be made up of government appointees rather than independent arbitrators.[131] This model directly addresses concerns about political accountability by vesting decision-making authority in officials who are either part of a public body or subject to a public appointment and review process.

In addition to making the arbitration board public officials, legislators could also limit the discretion of arbitration panels in their decision-making. Rhode Island achieves this by listing out the criteria an arbitrator must consider when adjudicating a dispute.[132] By listing criteria based on public policy considerations, legislators can force arbitrators to consider the impact of the dispute resolution on the broader community.[133] The establishment of explicit criteria also allows legislatures to establish clear statutory boundaries for what is non-bargainable between a public employer and its employees, and thus what matters are not subject to adjudication by an arbitrator.

By taking the myriad interests of public employers, employees, and the public itself into account and setting forth clear criteria for balancing those interests in the context of a public-sector collective bargaining disputes, legislatures can work towards a more coherent and equitable framework, and they can ensure that the resolution of disputes respects both the rights of public employees and the broader public interests that they serve.

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128. *Id.*

129. Orlando Mayorquin, *Utah Bans Collective Bargaining for Public Workers*, N.Y. TIMES (Feb. 15, 2025), https://www.nytimes.com/2025/02/15/us/utah-public-workers-collective-bargaining.html.

130. 231 N.W.2d at 228; *see also* Kanowitz, *supra* note 85, at 297–300.

131. Kanowitz, *supra* note 85, at 297.

132. R.I. S.B. 1059.

133. *See id.* (stating that "[t]he factors [considered by the arbitrators] shall include: . . . Interest and welfare of the public[.]")

III. CONCLUSION

The evolving landscape of public-sector labor relations is characterized by a persistent challenge: balancing the rights of public employees to organize and bargain collectively with the paramount need for accountable and efficient public services. Unlike their private-sector counterparts, public employees often lack the legal right to strike, which can significantly diminish their bargaining power, sometimes reducing negotiation to "collective begging instead of collective bargaining."[134] This imbalance is frequently exacerbated by judicial intervention, where courts are "increasingly active in helping public employers get out from under arbitration decisions" through doctrines like "non-delegability" and "against public policy."[135] But these doctrines do reflect a legitimate concern that "public issues should be decided by public officials who are responsible to the public."[136]

To navigate these complexities and foster a more balanced future, various approaches are being considered by state legislatures. While some, like Utah, are prohibiting public-sector bargaining outright, others, like Rhode Island, are trying to forge a middle path that balances both the immediate interests of the disputing parties, and the interests of the public that pays the salaries of public employees and receives the services of the public employers. The most promising approaches are ones that recognize the inherent weakness of public unions while also recognizing that people making decisions on expenditure of public money should be accountable to the public (like in Michigan, where the arbitration panel is appointed by the government). In addition to making arbitrators accountable to the public, legislatures can also clarify the scope of arbitration by refining the criteria that an arbitration panel must consider when adjudicating a dispute.

STATES LEGISLATIVE RESPONSE TO FORCED ARBITRATION CLAUSES IN INSURANCE CONTRACTS♣

Bill Number: Kansas House Bill 2351
Bill Status: Introduced
Bill Number: Louisiana House Bill 379
Bill Status: Subject to Call
Bill Number: Mississippi House Bill 552
Bill Status: Died in Committee

I. INTRODUCTION

Over the course of the past few decades, the Supreme Court has steadfastly enforced arbitration agreements under the Federal Arbitration Act (FAA).[137] When drawing from a large pool of potential clientele, insurance companies want to

134. Craver, *supra* note 79, at 54.
135. *See* Shaw, *supra* note 91, at 366–68 (explaining how courts utilize the two doctrines to the benefit of public employers).
136. Kanowitz, *supra* note 85, at 298–99.
137. 9 U.S.C. §§ 1–15 (2018).

incorporate arbitration clauses into their standard contracts.[138] Emboldened by Court preference to allow parties latitude in drafting arbitration agreements, the number of insurance companies utilizing standard arbitration clauses in their contracts increased dramatically.[139] These standard form agreements, commonly referred to as involuntary or forced arbitration clauses, preclude individuals and insurers alike from pursuing litigation as a means to dispute resolution.[140]

Calls for the regulation of these forced arbitration clauses have been made to state legislatures across the country.[141] Insurance companies seek to insulate themselves from fraudulent claims or overzealous jury awards through the arbitration process.[142] This process has the potential to both help or harm insurance policyholders, especially under the conditions of forced arbitration.[143] While arbitration generally reduces the expenses and length of the dispute, there is concern from consumer groups that the obfuscation of claims through the arbitration process can potentially harm insurance consumer bases.[144] In standard consumer–company arbitration agreements, there is an understanding that the purchase is optional for the consumer.[145] Conversely, common insurance policies are often required by statute for the policyholder.[146]

A handful of states have had success adopting legislation voiding or prohibiting forced arbitration clauses in insurance contracts under the McCarran-Ferguson Act.[147] For example, Oklahoma explicitly states that the Uniform Arbitration Act[148] does not apply to "contracts with reference to insurance,"[149] including contracts provided by health maintenance organizations ("HMOs").[150] The Court held that, "given the large number of members of health maintenance organizations, and the fact that the petitioner or any member of a health maintenance organization would have to go through arbitration and subsequent appeal in order to be heard on their health care claims, experiencing substantial delay in receiving benefits to which they may be entitled" it is in the public interest to bar enforcement of the mandatory

138. *See generally* John M. Parese, *The Winners and Losers in Forced Arbitration*, BUCKLEY, WYNNE & PARESE (Aug. 3, 2024), https://bwplaw.com/blog/winners-and-losers-in-forced-arbitration/ (last visited Dec. 20, 2025).

139. Alexander J.S. Colvin, *The Growing Use of Mandatory Arbitration*, ECONOMIC POLICY INSTITUTE 1, 6 (Apr. 6, 2018). *See also* Terri Hitchcock, *Insurance Arbitration*, THIMBLE, https://www.thimble.com/small-business-insurance/insurance-arbitration (last visited Dec. 20, 2025).

140. *Id.*

141. *Arbitration Clauses in Insurance Contracts: The Urgent Need for Reform*, PUBLIC CITIZEN, https://www.citizen.org/article/arbitration-clauses-in-insurance-contractsthe-urgent-need-for-reform/ (last visited Dec. 20, 2025).

142. *See generally* Colvin, *supra* note 144.

143. *Arbitration Clauses in Insurance Contracts: The Urgent Need for Reform*, *supra* note 146.

144. *See* Megan Leonhardt, *New legislation aims to allow patients to sue health insurance companies*, CNBC MAKE IT (Jun. 18, 2021), https://www.cnbc.com/2021/06/18/new-bill-aims-to-allow-patients-to-sue-health-insurance-companies-.html (last visited Dec. 20, 2025).

145. National Consumer Law Center, *Study: 99% of Consumers Unaware they are Subject to Forced Arbitration*, NCLC (Jul. 27, 2023), https://www.nclc.org/study-99-of-consumers-unaware-they-are-subject-to-forced-arbitration/ (last visited Dec. 20, 2025).

146. *Id.*

147. 15 USC §§ 1011–15 (2018). Creates a reverse preemption for state statutes over federal statutes in matters of insurance.

148. Uniform Arbitration Act, OKLA. STAT. 12, §§ 1851–81 (2025).

149. *See* Cannon v. Lane, 867 P.2d 1235 (1993).

150. *Id.*

arbitration clause.[151] Likewise, in Missouri, § 435.450 of the Missouri Arbitration Act prohibits mandatory arbitration provisions in insurance contracts.[152] Even where insurers employ choice of law clauses in the contract at issue, Missouri courts will only apply the law of another jurisdiction where "not contrary to a fundamental policy of Missouri."[153]

This piece will explore recent attempts by additional state legislatures to reckon with arbitration supremacy under the FAA in the context of insurance contracts. The first section will address the tension between company and policyholder interests as well as how the Kansas legislature has experienced a pendular effect over the past decade.[154] Following this, recent bills introduced in the Louisiana[155] and in Mississippi[156] Houses will be explored to glimpse the growing interest across the states for the preemption of forced arbitration clauses in requisite insurance contracts.

II. RECENT APPROACH TO RESTRICT FORCED ARBITRATION CLAUSES IN INSURANCE CONTRACTS

A. An Arbitration Battleground in Kansas

The topic of insurance arbitration in Kansas has been subjected to legislative growing pains for the past eight years.[157] The Kansas Arbitration Act (KAA), which barred insurance companies from incorporating arbitration clauses into their contracts, was repealed.[158] In its place, the Revised Uniform Arbitration Act (RUAA) permitted the inclusion of forced arbitration clauses.[159] Since the implementation of RUAA, attempts to amend and modify the act and once again prohibit arbitration clauses in insurance contracts have percolated amongst the legislature.[160]

In 2025, the Kansas House introduced House Bill 2351 to amend the RUAA to once again preclude forced arbitration clauses in insurance contracts.[161] Both bills promote "Amending the uniform arbitration act of 2000 to make certain agreements to appraise or arbitrate in contracts of insurance invalid and creating exceptions thereof."[162] Kansas continues to serve as a battleground between the benefits and detriments of forced arbitration contracts' inclusion in insurance contracts.[163] Alternatively, some states have opted for explicit policyholder notice in addition to

151. *Id.*
152. Missouri Arbitration Act, MO. REV. STAT. § 435.350.
153. Carlton Fields, *Missouri Court Finds Insurance Contract's Arbitration Clause Unenforceable As Against Public Policy*, JDSUPRA.COM (Jan. 25, 2018), https://www.jdsupra.com/legalnews/missouri-court-finds-insurance-contract-29876/ (last visited Dec. 20, 2025).
154. *See infra* Part II.A.
155. *See infra* Part II.B.
156. *See infra* Part II.C.
157. KAN. STAT. ANN. § 5–401 (repealed by Laws 2018, ch. 90, § 35).
158. *Id.*
159. *Id.*
160. *Id.*
161. KS H.B. 2351 (2025).
162. *Id.*
163. *See generally Id.*

the ability for policyholders to select a non-forced arbitration contract.[164] This allows for more awareness on the part of the policyholder regarding potential future disputes.[165]

B. Louisiana Moves Towards More Transparency

Amongst the different approaches state legislatures have devised in order to curtail harmful overreach by insurance companies, the Louisiana House introduced a bill "to provide for requirements of arbitration and selected arbitrators" in matters of property insurance policies.[166] This proposed piece of legislation focuses on one of the key aspects of disparity in forced arbitration contracts: the unbridled influence of insurance companies on the selection of arbitration as the method of dispute resolution.[167]

In theory, an arbitrator is meant to be selected with input from both parties from a list of eligible arbitrators.[168] Practically, however, companies often select the firm and may be more familiar with the arbitrators due to their frequent use of the process.[169] Arbitrator bias, even unintentional bias, may impact the outcome of a policyholder's claim.[170] Arbitrators who rule in favor of plaintiffs may not be selected for future cases by insurance companies who frequently make use of the system.[171]

Additionally, insurance companies may include a choice of forum clause in conjunction with the mandatory arbitration clause.[172] Policyholders may be compelled to travel out of state to resolve disputes regardless of the location of the property at issue.[173] This combination greatly disadvantages clients with fewer resources who may be inclined to settle prematurely or to avoid initiating arbitration proceedings altogether.[174]

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164. *See* James Birr, III., *When Can Insurance Companies Require Participation Mandatory Binding Arbitration?* JIMERSON BIRR FIRM (Nov. 2, 2023), https://www.jimersonfirm.com/blog/2023/11/when-can-insurance-companies-require-participation-in-mandatory-binding-arbitration/ (last visited Dec. 20, 2025).

165. *See generally Id.*

166. LA H.B. 379 (2025).

167. *Arbitration Clauses in Insurance Contracts: The Urgent Need for Reform*, *supra* note 146.

168. *Id.*

169. Katie Shonk, *What is Arbitration? The ins and outs of contractual agreements to engage in arbitration*, PROGRAM ON NEGOTIATION HARVARD LAW SCHOOL DAILY BLOG (Jul. 10, 2025), https://www.pon.harvard.edu/daily/conflict-resolution/what-is-an-arbitration-agreement/ (last visited Dec. 20, 2025).

170. *Arbitration Clauses in Insurance Contracts: The Urgent Need for Reform*, *supra* note 146.

171. *Id.*

172. *See generally* Amy Hargis, *How Insurance Arbitration Clauses Negatively Impact Policyholders*, RAIZNER SLANIA INSIGHTS (Jan. 3, 2023), https://www.raiznerlaw.com/insights/how-insurance-arbitration-clauses-negatively-impact-policyholders/ (last visited Dec. 20, 2025).

173. *Id.*

174. *Id.*

C. Mississippi Medical Malpractice Insurance Contract Arbitration Clause Restrictions Stall

Mississippi's recent attempt in House Bill 552 to prohibit forced consent to arbitration as a condition for medical malpractice insurance ultimately died in committee.[175] Nonetheless, this bill reflects the national trend towards arbitration clause restrictions for the insurance sector.[176] In arbitration, formal rules of discovery are not required and, therefore, are often limited to the discretion of the arbitrator.[177] For particularly complicated medical procedures, arbitration's limited discovery procedures can hinder a plaintiff's ability to prove their theory of the case, especially in instances of medical malpractice where the plaintiff is often reliant on external sources for discovery.[178]

III. ANALYSIS

Kansas, Louisiana, and Mississippi's legislatures are not alone in grappling with this issue of forced arbitration clauses in insurance contracts.[179] Sixteen other states have recognized the need for statutes prohibiting the enforcement of mandatory arbitration clauses in insurance contracts.[180] These statutes have been enacted to varying success: at least thirteen of those states' statutory language has been upheld under the McCarran-Ferguson Act while three have had courts find the statutes insufficient to prevent enforcement of arbitration clauses against policyholders.[181] In addition, several other states have enacted statutory language restricting the application of arbitration clauses or requirements for disclosures for specific insurance sectors.[182] These statutes provide some measure of protection for policyholders and insurance consumers against the more sophisticated insurance companies and their drafters.

While arbitration can be beneficial for both parties in a dispute where two sophisticated parties agree to the terms in a bargained-for contract, the power disparity between many insurance companies and their average policyholder is vast.[183] Insurance policies are, by nature, contracts of adhesion.[184] Insurance consumers are often expected to follow a "take it or leave" approach to the standard

175. MS H.B. 552 (2025).

176. Robert M. Horkovich, *Overcoming One-Sided Policy Arbitration Agreements*, FINE PRINT ONLINE (Nov. 2014), https://andersonkill.com/wp-content/uploads/2023/09/Overcoming-One-Sided-Insurance-Policy-Arbitration-Agreements.pdf.

177. *Arbitration Clauses in Insurance Contracts: The Urgent Need for Reform*, *supra* note 146.

178. *See* Benjamin Scott, *Why Arbitration for a Medical Malpractice Case is Not Always a Good Idea*, Wells Call Injury Lawyers (Apr. 23, 2024), https://www.wccbc.com/arbitration-for-medical-malpractice/ (last visited Dec. 20, 2025).

179. *State Laws Regulating Arbitration in Insurance Contracts*, PUBLIC CITIZEN (2010), https://www.propertyinsurancecoveragelaw.com/wp-content/uploads/2020/05/State-Laws-Regulating-Arbitration-in-Insurance-Contracts-_-Public-Citizen-Litigation-Group.-2010-1.pdf.

180. *Id.*

181. *Id.*

182. *Id.*

183. *See generally* Scott *supra* note 183.

184. Bill Wilson, *Resolving Claim Disputes: Step 2 . . . Other Policy Interpretation Doctrines*, INSURANCE J. (Aug. 5, 2019), https://www.insurancejournal.com/magazines/mag-features/2019/08/05/534727.htm (last visited Dec. 20, 2025).

form contracts provided by insurance companies, including mandatory arbitration clauses which would preclude the consumer's right to civil litigation.[185] Once a dispute arises, the power differential continues to harm policyholders for the benefit of the insurance company in the finality and size of the outcomes.

Arbitration awards are often not subject to appeal except in very narrow circumstances and are thus considered final for all intents and purposes.[186] The FAA permits awards to be vacated "under four very specific circumstances:"[187]

> (1) if the award is "procured by corruption, fraud or undue means"; (2) if the arbitrator exhibits evident partiality; (3) if the arbitrator is guilty of misconduct in refusing to postpone a hearing or refusing to hear material evidence, or engages in other acts that prejudice either party; or (4) if the arbitrators "exceeded their powers, or so imperfectly executed them that a mutual, final and definite award upon the subject matter submitted was not made" (9 U.S.C. § 10).[188]

Furthermore, awards in medical malpractice cases granted by arbitrators are, on average, much less substantial than awards given at jury trials.[189] Jurors "are often more receptive to arguments seeking to demonstrate that an insurance company is manipulating the system to its economic advantage."[190] This makes the arbitration process attractive to businesses dealing with a high volume of consumers.[191] In medical and healthcare insurance contexts, this means that opportunities for aggrieved parties to recoup present and future medical care costs can be hindered by the arbitration process based on the arbitrators' lower award estimates.[192] The "cost-saving"[193] implementation of arbitration clauses represents a calculatable and tangible impact on real-world plaintiffs seeking a payout from insurance companies.[194] Because policyholder outcomes are so negatively affected as a result of adhesion contracts created by insurers, state legislatures should employ firm prohibitions and restrictions of forced arbitration provisions as a matter of public policy.

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185. *See generally Id.*

186. *See* Kimberly Taylor, *Appealing an Arbitration Award: Early Planning and Agreement Are Key*, JAMS ADR INSIGHTS (Apr. 9, 2024), https://www.jamsadr.com/insight/2014/appealing-an-arbitration-award-early-planning-and-agreement-are-key (last visited Dec. 20).

187. *Id.*

188. *Id.* The finality aspect of arbitration awards is a key part of their desirability to parties looking to quickly and decisively settle a dispute without becoming embroiled in a lengthy litigation process.

189. *Arbitration Clauses in Insurance Contracts: The Urgent Need for Reform*, *supra* note 146.

190. *Insurance Arbitration*, Raizner Slania, https://www.raiznerlaw.com/practice-areas/insurance-arbitration/ (last visited Dec. 20, 2025).

191. Stephen J. Ware, *Paying the Price of Process: Judicial Regulation of Consumer Arbitration Agreements*, 2001 J. DISP. RESOL. 89, 90 (2001).

192. *Arbitration Clauses in Insurance Contracts: The Urgent Need for Reform*, *supra* note 146.

193. *See generally* Ware, *supra* note 196, at 90–1.

194. *Arbitration Clauses in Insurance Contracts: The Urgent Need for Reform*, *supra* note 146.

IV. CONCLUSION

While arbitration serves an important role in lowering overall dispute costs and prevents overindulgent jury awards, this expedited process should not supersede the rights of policyholders who are by default placed in a disadvantageous position when acquiring an insurance contract.[195] The imposition of insurance requirements by state and federal legislatures place policyholders in an inherently disadvantageous position. Many policyholders do not appreciate the significance of the forced arbitration clauses when incorporated into insurance contracts and are not given much notice or alternative.

In the instance of health insurance, for which most adult policyholders are tied to their employment, alternatives are simply not an option.[196] More state legislatures should seek to address these policyholder concerns through wholesale prohibition of forced arbitration clauses or through regulation of arbitration policies in specific insurance sectors.

ALTERNATIVE DISPUTE RESOLUTION: IMPACTS AND SUGGESTIONS AFTER MISSOURI LEGISLATION REPEALS PROPOSITION A[◊]

Bill Number: Missouri House Bill 567
Bill Status: Passed on May 3, 2025

Bill Number: Nebraska Legislative Bill 415
Bill Status: Passed on June 6, 2025

I. INTRODUCTION

Alternative Dispute Resolution is widely recognized as an effective tool in employment law, offering a means to resolve employment disputes efficiently.[197] Alternative dispute resolution is a method of resolving disputes without litigation.[198] Federal and state agencies embrace alternative dispute resolution through the encouragement of Congress.[199] Employers and agencies implement arbitration, mediation, negotiated rule-making, neutral fact-finding, and mini-trials to resolve employment disputes.[200] The goals of the application of alternative dispute resolution are to avoid expense, delay, and uncertainty of traditional litigation.[201] In

195. *See* Scott, *supra* note 183.

196. *Arbitration Clauses in Insurance Contracts: The Urgent Need for Reform*, *supra* note 146.

197. 57 Am. Jur. Trials 255, § 1–2 (Originally published in 1995).

198. Legal Information Institute, *alternative dispute resolution*, CORNELL L. SCH., https://www.law.cornell.edu/wex/alternative_dispute_resolution (last visited Dec. 25, 2025).

199. *Id.*

200. *Alternative Dispute Resolution*, U.S. DEP'T OF LABOR, https://www.dol.gov/general/topic/labor-relations/adr (last visited Dec. 25, 2025).

201. *Id.*

the employment context, it is especially crucial that communication between parties is improved to prevent future disputes.[202]

There have been legislative efforts across many states to backslide on voter-backed paid leave and wage laws; this type of legislation is growing as multiple states aim to modify or block voter-approved paid sick leave and wage protections.[203] These patterns reflect tension between direct democracy and legislative control over economic policy. These growing trends will have an impact on employment and alternative dispute resolution. Missouri House Bill and Nebraska Legislative Bill 415 are legislative measures designed to claw back the minimum wage and paid leave passed by Nebraska and Missouri citizens. Missouri's bill eliminates RSMo §§ 290.600–290.642, which requires employers to provide paid sick leave at a rate of one hour earned per thirty hours.[204] Nebraska's bill, meanwhile, creates exemptions for small employers to not provide paid sick leave.[205] It also changes the accrual rate of paid sick leave based on the size of the employer.[206] This trend of circumventing voter-led wage and leave can have inadvertent impacts on preexisting employment dispute resolution methods and can leave employees unsure of what forum to use to challenge employment relationship issues.

A. Employment Laws Reliance on Alternative Dispute Resolution

In Missouri, alternative dispute resolution plays a significant role in resolving employment disputes. Missouri has many measures in place that support alternative dispute resolution in the employment law context.[207] Alternative dispute resolution in Missouri employment law is a mechanism often used to resolve employment disputes.[208] Missouri courts have a history of not enforcing agreements to arbitrate, but most, if not all, Missouri courts have embraced the enforcement of arbitration agreements.[209] Even outside of Missouri's express laws, many employers use alternative dispute resolution methods in the employment agreement, and they are

202. *See Id.*

203. *See* Margery A. Beck, *Nebraska Republicans sought to weaken voter-backed paid sick leave. A Democrat helped them do it,* APNEWS.COM (May 29, 2025), https://apnews.com/article/paid-sick-leave-bill-nebraska-19be8bd8d65201301ee73510f06ac2ca.

204. Melissa Pesce, *Missouri Legislature Passes Bill to Repeal Earned Paid Sick Time Law*, OGLETREE DEAKINS (May 15, 2025), https://ogletree.com/insights-resources/blog-posts/missouri-legislature-passes-bill-to-repeal-earned-paid-sick-time-law/.

205. Melissa M. Pesce, *Nebraska Governor Signs Bill to Amend Healthy Families and Workplace Act*, OGLETREE DEAKINS (Jun. 9, 2025), https://ogletree.com/insights-resources/blog-posts/nebraska-governor-signs-bill-to-amend-healthy-families-and-workplace-act/?utm_source=chatgpt.com.

206. *Id.*

207. *Dispute Management*, MO. DEP'T OF LABOR, https://labor.mo.gov/dwc/units/dispute-management-unit (last visited Dec. 15, 2025).

208. *Id.*

209. § 31.1. Introduction and Overview, 2A Mo. Prac., Methods of Prac.: Litigation Guide (4th ed.).

prevalent in collective bargaining agreements.[210] Missouri excludes Workers' Compensation claims from arbitration, although there are mediation processes that parties can enter.[211] Employee Handbooks must not include an arbitration clause, as the court will likely interpret them as illusory.[212] The arbitration clause must be its own document.[213]

In Nebraska, alternative dispute resolution, in the Workers' Compensation Act, is focused on informal dispute resolution.[214] Nebraska law allows disputes regarding workers' compensation claims to be resolved informally through mediation or other informal means facilitated by the Nebraska Workers' Compensation Court.[215] The Nebraska Office of Dispute Resolution is an administrative office created by the Dispute Resolution Act.[216] This office encourages "mediation and RJ in the courts and in our families and communities." In Nebraska, alternative dispute resolution is at the forefront of much of Nebraska's judicial system in solving various disputes.

Missouri's alternative dispute resolution is more restrictive than Nebraska's, as Nebraska's Office of Dispute Resolution creates more stability and support for alternative dispute resolution programs. Missouri courts are stricter in the way they interpret arbitration awards and agreements.[217] The framework of alternative dispute resolution has a broader framework under Rule 17 of the Missouri Supreme Court Rules. Missouri courts may order ADR processes such as mediation, arbitration, or early neutral evaluation to resolve disputes before trial.[218] These processes are also treated as settlement negotiations, with communications made during ADR being confidential and inadmissible as evidence.[219]

II. INDIRECT IMPACTS ON EMPLOYMENT: ALTERNATIVE DISPUTE RESOLUTION

Missouri House Bill 567 does not address alternative dispute resolution directly, but it will have impacts on Missouri's preexisting dispute resolution processes in employment law. House Bill 567 repeals Proposition A, which requires

210. *Mastering Alternative Dispute Resolution in Collective Bargaining*, NUMBERANALYTICS.COM (May 26, 2025), https://www.numberanalytics.com/blog/mastering-alternative-dispute-resolution-in-collective-bargaining.

211. § 2.05 Other Considerations at the Hiring Stage, 2A Mo. Prac., Methods of Prac.: Litigation Guide (4th ed.).

212. *Id.*

213. *Id.*

214. Neb. Ct. R. Workers' Comp. Rule 48.

215. *Id.*

216. *Mediation & Restorative Justice*, NEB. JUDICIAL BRANCH, https://supremecourt.nebraska.gov/programs-services/mediation-restorative-justice (last visited Dec. 25, 2025).

217. Mo. R. Governing Mo. Bar & Judiciary Rule 17.

218. Mo. R. Governing Mo. Bar & Judiciary Rule 17.04, 17.06 & 17.03.

219. *Id.*

mandatory increases to the minimum wage.[220] House Bill 567 will go into effect August 28, 2025; however, since no emergency clause was included in the bill, Proposition A will be in effect until August 28, 2025.[221] Proposition A requires private employers to provide paid leave benefits to workers at a rate of one hour for every thirty hours worked.[222] House Bill 567 removes the automatic increase to minimum wage starting January 1, 2025.[223] The bill also repeals earned paid sick leave time that was included in Proposition A.[224] Under Proposition A, starting May 1, 2025, employers must provide earned paid sick time to employees.[225] There will be a seventeen-week period where this is in effect.[226] Missouri's paid leave will have no statewide requirement for employers to offer paid sick leave to employees, once House Bill 567 goes into effect on August 28, 2025.[227]

Nebraska Legislative Bill 415 is like Missouri House Bill 567. The Nebraska legislature passed a bill that weakens a voter-backed measure requiring employers to offer paid sick leave.[228] In November 2024, Nebraska voters approved a ballot measure that requires employers to provide paid sick leave to their employees.[229] That measure would require businesses to provide one hour of paid sick leave for every thirty hours worked.[230] This measure only applied to businesses with twenty or more employees.[231] Rather than repealing the entire ballot measure, like Missouri's lawmakers, Nebraska's bill creates an exception. It prohibits certain employees from qualifying for sick leave, such as 14 and 15-year-olds and temporary and seasonal agricultural workers.[232] There is some concern that this new law will prevent workers from suing employers who retaliate against them for using paid sick leave.[233] This bill will become effective on October 1, 2025.[234]

Both Missouri and Nebraska lawmakers have passed these bills in efforts to counter voter-approved policies, to protect workers and small businesses; however, there has been little consideration for the impacts on each state's alternative dispute resolution programs and usage.[235]

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220. *Missouri Proposition A Repealed—What Employers Need to Know*, ARMSTRONG TEASDALE (May 15, 2025), https://www.armstrongteasdale.com/thought-leadership/missouri-proposition-a-repealed-what-employers-need-to-know/.

221. *Id.*
222. *Id.*
223. *Id.*
224. Pesce, *supra* note 209.
225. *Id.*
226. *Id.*
227. Shreyas Patil, *Missouri PTO laws: A Full-fledged Guide on Missouri PTO Payout Laws*, TRUEIN.COM (Oct. 13, 2025), https://truein.com/blogs/missouri-pto-payout-laws.

228. *Nebraska Republicans sought to weaken voter-backed paid sick leave. A Democrat helped them do it*, *supra* note 208.
229. *Id.*
230. *Id.*
231. *Id.*
232. *Id.*
233. *Id.*
234. Pesce, *supra* note 210.
235. *See Id. See also* Beck, *supra* note 208.

A. Fewer Employment Claims

In Missouri, repealing paid sick leave will leave employees with fewer means to make employment claims against employers. Proposition A granted employees a private cause of action for paid sick leave violations.[236] Fewer claims will lead to fewer disputes that are eligible for alternative dispute resolution, since the underlying rights are no longer enforceable through those avenues. Employees, with alternative dispute resolution clauses in their employment contracts, will no longer be able to bring claims against employers regarding paid sick leave in arbitration.[237] Employees will likely alter their grievance procedures to reflect the new changes.

Moreover, employees who engage in a collective bargaining agreement will have less bargaining power to create alternative dispute resolution clauses in the collective bargaining agreement that focus on employee-paid leave.

The scope of arbitration agreements is limited to statutory rights in existence.[238] When there is no longer a private right of action to a paid sick leave claim, and paid sick leave is no longer in the employment or collective bargaining agreement, then there will be no alternative dispute resolution for this type of claim.[239]

The removal of a private right of action also reduces employee leverage in informal ADR processes such as voluntary mediation or grievance procedures. Without the threat of arbitration or litigation, employees are less likely to secure employer participation in voluntary resolution mechanisms. House Bill 567 leaves the employees to the internal employer policies on sick leave and if alternative enforcement paths.[240] Employees will have greater control over employee benefits and have control over the enforcement of those benefits, without any state-supported laws, which could make some employment processes more efficient.[241]

B. Gray Zone and Its Impacts on ADR

There is a gray area that exists during the 17-weeks that Proposition A is in effect, that will impact ADR. Proposition A creates a private cause of action for employers.[242] Proposition A gives employees access to traditional civil litigation to sue based on paid-sick leave.[243] Employers must implement employment policies to address paid-sick leave during the 17-weeks that Proposition A is in effect.

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236. *See* Lucas Caldwell-McMillan, *Missouri Workers Need Paid Sick Leave: Supporting Our State's Families by Opposing HB 567*, EMPOWERMISSOURI.ORG, https://empowermissouri.org/missouri-workers-need-paid-sick-leave-supporting-our-states-families-by-opposing-hb-567/?utm_source=chatgpt.com (last visited Dec. 15, 2025).

237. *See generally* AT&T Techs., Inc. v. Commc'ns Workers of Am., 475 U.S. 643, 648 (1986).

238. Johnson v. Menard, Inc., 484 S.W.3d 888, 892–93 (Mo. Ct. App. 2016).

239. *Id.*

240. *Missouri Senate Passes Bill To Repeal Proposition A*, APLUSPAYROLL, https://www.apluspayroll.com/missouri-senate-passes-bill-to-repeal-proposition-a/ (last visited Dec. 15, 2025).

241. *Id.*

242. *See* Margaret Gentzen & Haley Spiewak, *Legal Considerations for Missouri Employers After Proposition A Passage*, FOX SMITH (Nov. 18, 2024) https://foxsmithlaw.com/legal-considerations-for-missouri-employers-after-proposition-a-passage/?utm_source=chatgpt.com.

243. *Id.*

ADR will likely be more prevalent in employer disputes during this time. Since Proposition A is only in effect for 17-weeks, the traditional civil litigation channels will not provide employees with a quick enough channel to address their potential claims brought under Proposition A.[244] Traditional litigation may take years, and by the time the claim is before the court it will be moot.[245] ADR can resolve the issue in a matter of weeks or months, rather than the time of the traditional litigation.[246] Also, the ADR process will allow employees and employers to preserve their relationship for the short period of time Proposition A is in effect.[247] While Proposition A will not be permanent, ADR can offer a less adversarial and hostile way for employers and employees to discuss issues that arise during the time.[248] The overturn of Proposition A could be a challenging time for employers and employees, and ADR might provide the smoothest way to address issues that arise. ADR will also allow employers and employees to have greater control in shaping the outcome.[249] Since Proposition A is temporary, if employers and employees work together to shape the outcome, both sides will be able to explain their rationale.[250] This can lead to a solution that would accommodate the temporary effect of Proposition A, while making both parties feel heard in the ADR process.[251] Both parties are more likely to be satisfied with the outcome of the dispute resolution process, and will prevent further issues during the implementation of Proposition A.[252]

During Proposition A, employers may change their policies to compel ADR to deal with disputes that arise from sick leave denial.[253] With compelling ADR and employees preferring ADR during Proposition A, ADR challenges will likely face more usage during the 17-weeks to address sick leave claims. ADR will likely become a necessary tool during a time that is difficult for employers and employees.

C. Larger Issues

Nebraska Legislative Bill 415 and Missouri House Bill 567 are examples of several state legislatures repealing citizen-initiative petitions, many of which create

244. *See generally* Pesce, *supra* note 209.

245. *See How Long Does Civil Litigation Take? Timeline & Expectations*, BARLI LAW (Jul. 10, 2025), https://barlilaw.com/how-long-does-civil-litigation-take-timeline-expectations/.

246. *ADR Benefits,* JUDICIAL BRANCH OF CAL., https://courts.ca.gov/programs-initiatives/alternative-dispute-resolution-adr/adr-benefits (last visited Dec. 15, 2025).

247. *See generally id.*

248. *See generally id.*

249. *Id.*

250. *See generally id.*

251. *See generally id.*

252. *See generally ADR Benefits*, *supra* note 251.

253. *See generally Proposition A: What Employers Need to Know*, MO. CHAMBER OF COM. & INDUS. (Nov. 27, 2024), https://mochamber.com/news-archive/proposition-a-what-employers-need-to-know/?utm_source=chatgpt.com.

private rights of actions, which can have consequences with ADR mechanisms.[254] These voter-enacted statutes often include private rights of action, enabling individuals to file lawsuits or pursue alternative dispute resolution ("ADR"), such as arbitration or mediation, when the statutory rights are violated.[255] Law makers across many states are making it difficult for initiative petition measures to end up on the ballot.[256] In Utah, the state legislature created an amendment to the Utah constitution that would grant them power over citizen initiatives, allowing them to rewrite or repeal the initiative after the citizens have already voted.[257] This will create confusion in many states, just like the 17-week adjustment for Proposition A, where there is a period between the enactment of the citizen initiative and the legislature overturning that initiative. This will likely lead to direct and indirect ADR, as seen in Missouri. Like Missouri and Nebraska, citizen ballot measures might create a private right of action that are either limited or repealed; therefore, cutting off both litigation and ADR avenues for employees.[258] ADR provisions often rely on the existence of a statutory cause of action—if a law grants individuals the right to seek damages, then employers or service providers may contractually require those claims to be resolved through ADR instead of litigation.[259] These developments illustrate how ADR mechanisms are often only as durable as the statutory rights they're built on, and how legislative repeal of initiative-based laws can result in the total loss of both judicial and non-judicial resolution options unless ADR is independently rooted in broader contractual or constitutional protections.[260]

III. CONCLUSION

The repeal and modification of voter-approved employment laws, such as those in Missouri and Nebraska, reveal a growing tension between direct democracy and legislative authority—one that has far-reaching consequences for the use and availability of Alternative Dispute Resolution ("ADR") in employment law. ADR has long served as a flexible, cost-effective, and relationship-preserving method for resolving employment disputes outside of traditional litigation. However, its effectiveness is often directly tied to the existence of statutory rights that can be enforced through arbitration, mediation, or other informal mechanisms.

More broadly, as more states explore constitutional or legislative changes that enable the rollback of voter-led initiatives, the reliability of ADR systems in the employment context becomes more fragile. Unless ADR rights are clearly

254. David A. Lieb, *Lawmakers want to rein in citizen ballot initiatives with new requirements*, PBS.ORG (May 7, 2025), https://www.pbs.org/newshour/politics/lawmakers-want-to-rein-in-citizen-ballot-initiatives-with-new-requirements.

255. *See generally id.;* Hannah Schoenbaum, *Utah lawmakers want voters to give them the power to change ballot measures once they've passed*, APNEWS.COM (Aug. 21, 2024), https://apnews.com/article/utah-ballot-measures-voting-rights-b01900725e0e4979d111e4455a0f1747.

256. *Id.*

257. See Schoenbaum, *supra* note 260.

258. *See generally* Pesce, *supra* note 210.

259. *See generally id.*

260. Mohamed Sweify, *Domestic Courts' Impact on Arbitral Awards: Pragmatic Reflections on the New York Convention*, J. DISP. RESOL. 1, 1 (2021).

preserved through robust contractual agreements or protected under constitutional or federal law, their utility will remain vulnerable to the shifting political landscape. As states continue to test the limits of legislative control over voter-enacted laws, both employers and employees must carefully reconsider how ADR is integrated into their legal frameworks and employment policies.

II. Highlights

In the Highlights Section, the authors summarize noteworthy bills identified during their research. The bills are presented in alphabetical order, and no preference or editorial judgment is implied.

CONNECTICUT HOUSE BILL 6971*

House Bill 6971 in Connecticut adopts the Connecticut Uniform Mediation Act.[261] The bill establishes a legal framework for mediation in the state, focusing on confidentiality of communications and disclosure of information.[262] Furthermore, it entails the duties individuals have before serving as a mediator including provisions on impartiality.[263] The law applies to mediations starting on or after October 1, 2025.[264]

The Judiciary Committee introduced this bill on February 13, 2025.[265] Lawmakers held the first reading that day and referred the bill to the Joint Committee on Judiciary.[266] The bill had a public hearing, a filing with the Legislative Commissioners' Office and a report made before being passed by the House on May 13, 2025. Thereafter, on May 28, 2025, the Senate passed the bill as well.[267] The Secretary of State received the bill on June 5, 2025, and sent it to Connecticut Governor Ned Lamont (D) on June 9, 2025.[268] Governor Lamont signed it the next day.[269]

GEORGIA HOUSE BILL 155*

House Bill 155 in Georgia is an amendment to Article 7 of Chapter 36 of Title 36 of the Official Code of Georgia Annotated.[270] The bill includes provisions changing the pool of arbitrators to be selected, the selection process, and the selection timeline for arbitrations in annexation disputes.[271] The bill further entails a provision requiring each panel member to submit a signed statement in support or

261. H.B. 6971, 2025 Gen. Assemb., Reg. Sess. (Conn. 2024).
262. *Id.*
263. *Id.*
264. *Id.*
265. CONN. GEN. ASSEMB., https://www.cga.ct.gov/asp/cgabillstatus/cgabillstatus.asp?selBillType=Bill&which_year=2025&bill_num=6971 (last visited Aug. 3, 2025).
266. *Id.*
267. *Id.*
268. *Id.*
269. *Id.*
270. H.B.155, 2025-2026 Gen. Assemb., Reg. Sess. (Ga. 2025).
271. *Id.*

opposition of written findings and recommendations.[272] The bill assigned an effective date of January 1, 2026, for the section pertaining to arbitration.[273]

Representative Victor Anderson (R), along with six other representatives, introduced this bill on January 28, 2025.[274] It was read for the first time on January 29, 2025.[275] It was read two more times by the House before being passed on February 20, 2025.[276] The Senate read the bill three times before passing the bill on March 31, 2025. The Senate and House agreed to proposed amendments on April 2, 2025, and April 4, 2025.[277] The House sent the bill to Georgia Governor Brian Kemp (R) on April 10, 2025, who signed the bill on May 12, 2025.[278]

ILLINOIS SENATE BILL 2327♣

Illinois Senate Bill 2327 proposes to create an ombudsperson position to address cultural disputes between families and the Department of Children and Family Services (DCFS).[279] The position would be an Independent Cultural Ombudsman role within DCFS and appointed by the Governor for a four-year term.[280] The bill provides for the requirements of the position and outlines the importance of the Ombudsman's duties with respect to preserving "the rights of youth and families that are subject to investigation, collaboration," or other contact with DCFS.[281]

Representative Ram Villivalam (D) introduced the bill on February 7, 2025, and the first version was read the same day.[282] The bill was subsequently assigned to the Health and Human Services Committee on March 4, 2025.[283] Following three readings, the bill was re-referred to assignments as of June 2, 2025, per Senate Rule 3-9(A).[284]

MAINE SENATE PAPER 344♣

Senate Paper 344 in Maine provides recommendations for the creation of an arbitration panel system to settle conflicting land title claims between the Passamaquoddy Tribe, the Penobscot Nation, the Houlton Band of Maliseet Indians and prospective private land-owning entities.[285] This arbitration system would be

272. *Id.*
273. *Id.*
274. GA. GEN. ASSEMB., https://www.legis.ga.gov/legislation/69592 (last visited Aug. 3, 2025).
275. *Id.*
276. *Id.*
277. *Id.*
278. *Id.*
279. S.B. 2327, 104th Gen. Assemb., Reg. Sess. (Ill. 2025).
280. *Id.*
281. *Id.*
282. ILL. GEN. ASSEMB., https://ilga.gov/Legislation/BillStatus?DocNum=2327&GAID=18&DocTypeID=SB&LegId=162187&SessionID=114 (last visited Aug. 3, 2025).
283. *Id.*
284. *Id.*
285. S.P. 344, 132nd Gen. Assemb. (Me. 2025).

used to handle disputes arising from the transfer of land by the state of Maine to control of the aforementioned tribal nations. [286]

This paper is presented by Senator Rachel Talbot Ross (D) and cosponsored by Representative Mark Babin (R), Senator Richard Bennett (R), Senator Anne Carney (D), President Matthew Daughtry (D), Representative Billy Bob Faulkingham (R), Speaker Ryan Fecteau (D), Representative Amy Kuhn (D), Representative Adam Lee (D), and Senator Marianne Moore (R).[287] The paper was received by the Secretary of the Senate on February 27, 2025, and referred to the Committee on Judiciary on March 4, 2025, pursuant to Senate Rule 308.2.[288] It has been carried over to the next special or regular session first on March 21, 2025, and most recently on June 25, 2025.[289]

NEW YORK ASSEMBLY BILL AB3885◊

New York Assembly Bill 3885 amends an existing law to revise the definition of "health care plan" under § 603(c) to explicitly include health benefits under Section 162 of the Civil Service Law.[290] New York's Assembly Bill A3885 clarifies and expands access to the Independent Dispute Resolution ("IDR") process for health care providers disputing out-of-network payment claims.[291] The IDR process helps resolve fee disputes between health care providers and insurers when they can't agree on payment amounts. The bill removes previous language referencing the median rate recognized by the plan, a change that may significantly affect how fees are negotiated through IDR.[292] By adjusting what factors IDR entities must consider, including eliminating reliance on median reimbursement rates, the bill may strengthen providers' negotiating power, potentially reducing undervaluation of services.[293]

Assembly Member David I. Werpin introduced the bill on January 30, 2025.[294] The bill was referred to insurance on January 30, 2025.[295] As of August 18, 2025, the bill remains in committee. The act takes effect as soon as it is signed into law.[296]

OKLAHOMA HOUSE BILL 1366◊

Oklahoma House Bill 1366 establishes a compact for dentists and dental hygienists, defining terms, commission membership and duties, compact member states, licensing privileges across state lines, jurisdiction, fees, military waivers, joint investigations, disciplinary actions, enforcement, dispute resolution,

286. *Id.*
287. ME. GEN. ASSEMB., https://legislature.maine.gov/bills/display_ps.asp?snum=132&paper=SP0344PID=1456 (last visited Aug. 3, 2025).
288. *Id.*
289. *Id.*
290. N.Y. Assemb. B. A3885, 248th Leg., Reg. Sess. (2025).
291. *Id.*
292. *Id.*
293. *See Id.*
294. N.Y. Legis. Assemb. A. 3885, 248th Leg., Reg. Sess. (2025), https://www.nysenate.gov/legislation/bills/2025/A3885.
295. *Id.*
296. *Id.*

withdrawal, dissolution, severability, and related rules of order and procedures.[297] HB 1366 allows licensed dentists and dental hygienists to practice in other participating compact states without needing to obtain additional licenses.[298] HB 1366 is part of a growing national movement toward interstate licensure compacts in health care professions. HB 1366 includes provisions that expedite licensure for military personnel and their spouses.[299]

Representative Bob Culver introduced the bill on January 15, 2025.[300] It was initially read on February 3, 2025.[301] On its second reading it was referred to the Commerce and Economic Development Oversight Committee and Business Committee.[302] In the Committee it was recommended to pass.[303] On its third reading in the House, the bill was passed on March 27, 2025.[304] On March 31, 2025, the bill was formally engrossed and sent to the Senate.[305] On April 1, it was read a second time and referred to the Senate Health and Human Services Committee.[306] At that point, Senator Hamilton became the sole Senate sponsor.[307] The bill died in Committee.

PENNSYLVANIA SENATE BILL 219[+]

Pennsylvania's Senate Bill 219 would establish a pilot program for utilizing "youth courts" as an alternative to traditional juvenile discipline.[308] The bill is focused on a restorative justice model, aiming to resolve student misconduct through peer-led mediation and other non-punitive sanctions.[309] Upon enactment, the legislation would create a grant program with $9.5 million to establish six pilot youth courts across the Commonwealth.[310] Students, overseen by lawyers, teachers, and ADR experts, would operate the youth courts.[311]

Senator Timothy Kearney (D) introduced the bill on February 3, 2025, and it was referred to the Judiciary Committee on the same day.[312] The Judiciary Committee has taken no further action on the legislation, and the bill will likely die in committee.[313]

297. H.B. 1366, 59th Leg., 1st Reg. Sess. (Okla. 2025).
298. *Id.*
299. *Id.*
300. H.B. 1366, 59th Leg., 1st Reg. Sess. (Okla. 2025), https://www.oklegislature.gov/BillInfo.aspx?Bill=HB1366&Session=2500.
301. *Id.*
302. *Id.*
303. *Id.*
304. *Id.*
305. *Id.*
306. *Id.*
307. *Id.*
308. S.B. 219, 2025–2026 Gen. Assemb., Reg. Sess. (Penn. 2025).
309. *Id.*
310. *Id.*
311. *Id.*
312. *Senate Bill 219*, PENN. GEN. ASSEMB., https://www.palegis.us/legislation/bills/2025/sb219 (last visited August 10, 2025).
313. *Id.*

WISCONSIN'S SENATE BILL 189[+]

Wisconsin's Senate Bill 189 amends the state's divorce process by offering an alternative to a court hearing for couples seeking an amicable divorce.[314] The legislation allows for a "final hearing by affidavit," enabling a court to grant a divorce or legal separation without the parties having to appear in-person at a court hearing.[315] This is an optional process,[316] and it is designed to be more efficient for couples who have reached a divorce agreement.[317] To be eligible, parties must either both be represented by counsel or have utilized a lawyer-mediator with specialized dispute resolution training.[318] If a mediator is used, the mediator must be the one to draft and file the parties' signed stipulation, ensuring that a qualified third-party neutral has overseen the agreement.[319] The submitted affidavit serves as a formal declaration, affirming that all legal requirements—such as residency and financial disclosures—have been met and that the parties knowingly waive their right to an in-person hearing.[320]

Senators Rachael Cabral-Guevara (R) and Eric Wimberger (R) introduced Senate Bill 189 on April 14, 2025.[321] It was read for the first time that day and assigned to the Committee on Mental Health, Substance Abuse Prevention, Children, and Families.[322] After public hearings and the committee issuing a report in favor of passage, Senator Melissa Ratcliff was added as a coauthor of the bill.[323] It was read for the second and third time on June 18, 2025, and passed the Senate the same day.[324] The Assembly received the bill from the Senate on June 19, 2025, and it read the bill for the first time on July 16, 2025.[325] The Assembly referred the bill to the committee on Rules that same day, and the committee has taken no further action on the bill as of August 10, 2025.[326]

Legislative Catalog

The Legislative Catalog includes all bills related to alternative dispute resolution in all fifty states, whether enacted or pending. The authors last updated the catalog in October 2024; accordingly, some pending bills may not have been enacted, and some enacted laws may have since faced legal or practical challenges.

314. S.B. 189, 2025–2026 Gen. Assemb., 2025 Reg. Sess. (Wisc. 2025).
315. *Id.*
316. *Id.*
317. *Id.*
318. *Id.*
319. Wisc. S.B. 189.
320. *Id.*
321. *Senate Bill 189*, WISC. STATE LEG., https://docs.legis.wisconsin.gov/2025/proposals/sb189 (last viewed August 10, 2025).
322. *Id.*
323. *Id.*
324. *Senate Bill 189*, *supra* note 326.
325. *Id.*
326. *Id.*

ALABAMA*

Bills Enacted: **S.B. 174** (Encourages settlement or alternative dispute resolution for tax disputes through the Department of Revenue's dispute resolution forum); **H.B. 505** (Encourages settlement or alternative dispute resolution for tax disputes through the Department of Revenue's dispute resolution forum).

Bills Pending: **None**

ALASKA*

Bills Enacted: **None**

Bills Pending: **None**

ARIZONA*

Bills Enacted: **None**

Bills Pending: **None**

Bills Vetoed: **H.B. 2541** (Adds sections. Courts shall order mediation or conference before adjudicating contested dependency cases); **S.B. 1514** (Adds sections. Courts shall order mediation or conference before adjudicating contested dependency cases).

ARKANSAS*

Bills Passed: **H.B. 1468** (Section does not apply to mediations involving action/arbitration from Attorney General for civil enforcement of Deceptive Trade Practices Act); **S.B. 498** (Section does not apply to mediations involving action/arbitration from Attorney General for civil enforcement of Deceptive Trade Practices Act); **S.B. 72** (Section does not apply to mediations involving action/arbitration from Attorney General for civil enforcement of Deceptive Trade Practices Act); **H.B. 1258** (Provides for cultural mediation with health or social service systems with community health workers).

Bills Pending: None

CALIFORNIA*

Bills Enacted: None

Bills Pending: **A.B. 1099** (Requires State Department of Developmental Services to post data including the number of instances, and demographic factors in cases where people challenged a mediation conference); **A.B. 340** (Requires State Department of Developmental Services to post data including the number of instances, and demographic factors in cases where people challenged a mediation conference); **A.B. 381** (Requires State Department of Developmental Services to post data including the number of instances and demographic factors in cases where people challenged a mediation conference); **S.B. 291** (Requires State Department of Developmental Services to post data including the number of instances and demographic factors in cases where people challenged a mediation conference); **A.B. 288** (A worker can pursue an order from Public Employment Relations Board to require their employer to participate in binding mediation); **A.B. 1523** (A worker can pursue an order from the Public Employment Relations Board to require their employer to participate in binding mediation); **A.B. 635** (Mobile Home Residency Law Protection Program department shall not participate in ADR with rent disputes, etc. but may provide info); **S.B. 440** (Mobile home Residency Law Protection Program department shall not participate in ADR with rent disputes, etc. but may provide info); **S.B. 477** (Civil Rights Department requires all parties to participate in mandatory dispute resolution prior to the director filing a civil lawsuit); **S.B. 82** (For consumer use agreements, dispute resolution terms and conditions are limited and waivers of such conditions are void and unenforceable); **S.B. 71** (Within five days after the public comment period ends, anyone who made comments on draft environmental impact report can request nonbinding mediation).

COLORADO*

Bills Passed: **H.B. 1204** (Includes provision where the Court cannot terminate parental rights of an Indian child unless Court has offered the parties mediation); **S.B. 265** (Section creates a fund for the mobile home park act dispute resolution and enforcement program); **H.B. 1215** (Section creates a fund for the mobile home park act dispute resolution and enforcement program).

Bills Vetoed: **H.B. 1291** (Includes a statute voiding contracts between a transportation network company and a driver/ride if there is a provision including mandatory arbitration in cases of sexual misconduct or sexual assault).

CONNECTICUT*

Bills Passed: **H.B. 06435** (Requires an insurance company in an automobile case involving physical or property damage to reimburse the cost of an arbitration hearing if award is for the claimant); **H.B. 06971** (Sets statewide rules for mediation, including confidentiality, privilege, and mediator responsibilities); **S.B. 01283** (Allows parties in family law disputes to resolve issues without going to court through a voluntary process with lawyers).

Bills Pending: **None**

DELAWARE*

Bills Enacted: **None**

Bills Pending: **None**

FLORIDA*

Bills Passed: **S1344** (Removes family mediation as a reasonable effort in child-in-need-of-services cases); **S0538** (Removes family mediation as a reasonable effort in child-in-need-of-services cases).

Bills Pending: **H1405** (Removes family mediation as a reasonable effort in child-in-need-of-services cases).

GEORGIA*

Bills Passed: **H.B. 155** (Requires five-member arbitration panel to be appointed within 20 days of an objection of a proposed annexation and details the selection of the panel); **H.B. 268** (Authorizes regional educational service agencies to be involved in dispute resolution and review education records).

Bills Pending: **None**

HAWAII*

Bills Passed: **H.B. 162** (If parties cannot choose, the Hawaii Labor Relations Board requests five arbitrators from recognized organizations); **H.B. 420** (Clarifies the mediation process for construction defect claims); **S.B. 825** (Lengthens notice period for terminating rental agreements and, if tenants schedule mediation, requires landlords to participate and postpone summary possession actions).

Bills Pending: **None**

IDAHO*

Bills Passed: **S.B. 1006** (Prohibits construction contracts for private improvements from requiring dispute resolution to occur outside the state).

Bills Pending: **None**

ILLINOIS♣

Bills Enacted: **S.B. 3284** (Establishes court ordered mediation as a standard process for creating or modifying a parenting plan during separation).

Bills Pending: **S.B. 1820** (Establishes court ordered mediation as a standard process for creating or modifying a parenting plan during separation); **S.B. 1860** (Creates an ombudsperson position within the Dept. of Human Rights); **S.B. 3981** (Establishes a mediation process for those concerned about for human rights complaint retaliation); **H.B. 2480** (Amends Sec. 14 Security employee, peace officer and fire fighter disputes to provide for the mediation and arbitration requirements of municipalities and their public employees); **H.B. 3316** (Create an ombudsperson bureau to receive violations and complaints from within the Department of Corrections); **S.B. 2327** (Creates an ombudsperson position to handle disputes between families and DCFS).

INDIANA♣

Bills Enacted: **None**

Bills Pending: **S.B. 251** (Creates an ombudsperson position to handle economic fraud disputes and audits).

IOWA♣

Bills Enacted: **None**

Bills Pending: **S.F. 251** (Creates an ombudsperson assistant position to investigate foster care complaints); **H.F. 667** (Designs a uniform system for the arbitration of familial disputes); **H.B. 2181** (Governs the ability of an arbitrator to make awards in family disputes).

KANSAS♣

Bills Enacted: **S.B. 88** (Act providing specialized requirements for the long-term care ombudspersons); **S.B. 2045** (Section 7 creates an ombudsperson position for childcare services).

Bills Pending: **H.B. 2351** (Repeals prior law permitting insurance contracts to designate certain disputes as appraisable or arbitrable); **H.B. 2357** (Provides protection through the sealing and expunging of court records including those of mandated landlord-tenant mediation).

KENTUCKY♣

Bills Enacted: **None**

Bills Pending: **H.B. 549** (The 60-day waiting period for divorce proceeding concerning minor children will not apply to parties with a mediation agreement); **S.B. 46** (Amends protective order procedure where there is potential for domestic violence so that mediation cannot be mandated without consent).

LOUISIANA♣

Bills Enacted: **None**

Bills Pending: **H.B. 500** (Taxpayers may pursue mediation for certain disputes within 15 calendar days from an issued notice); **H.B. 379** (Sets forth requirements for an insurer and policyholder to engage in arbitration or mediation).

MAINE*

Bills Enacted: **S.P. 77** (Establishes the right to extend state employee immunity protections to third-party mediators).

Bills Pending: **S.P. 769** (Creates the Office of the Corrections Ombudsman to handle concerns of incarcerated individuals and staff); **S.P. 717** (Establishes an ombudsperson program for MaineCare members to handle transportation complaints and concerns); **S.P. 344** (Creates an arbitration system to handle conflicts and concerns of the Passamaquoddy Tribe).

MARYLAND*

Bills Enacted: **S.B. 373** (Sets up an arbitration process under the Labor Arbitration Rules of the AAA).

Bills Pending: **H.B. 558** (Creates a procedure for COC dispute mediation under the local commission prior to setting a hearing); **H.B. 488** (Includes restorative approach to school discipline including: mediation; peer mediation; personal accountability; circle processes, etc.); **H.B. 159** (Sets up a scheme for state employees to enter arbitration for collective bargaining purposes); **S.B. 433** (Creation of constituent services and ombudsmen programs for employee disability grievances).

MASSACHUSETTS*

Bills Enacted: **None**

Bills Pending: **S.D. 2543** (Creates a dispute resolution program to handle disputes between residents and community property owners); **S.D. 2503** (Outlines student conflict and consequences for school settings including alternative dispute resolution practices); **S.B. 1130** (Mediation process established for mortgagee to dispute foreclosure); **S.D. 609** (Incorporates mediation into veteran and service member employment disputes); **H.D. 1644** (Extends mediation and court hearing procedures to grandparent visitation rights); **H.B. 1523** (Creates an ombudsman position to establish a Condominium Mediation Pilot Program).

MICHIGAN*

Bills Enacted: **None**

Bills Pending: **H.B. 4215** (Creates protections for those involved in domestic violence relationships from court-ordered mediation); **H.B. 4316** (Creates a state employee ombudsman position); **H.B. 6293** (Establishes an expedited arbitration process for MI employees whose right to strike is prohibited).

MINNESOTA♣

Bills Enacted: **None**

Bills Pending: **S.F. 1063** (Creates a CIC ombudsperson position to handle disputes between unit owners and CICs); **S.F. 775** (Creates an ombudsperson position to handle agricultural worker safety and labor standards); **H.F. 3259** (Reauthorization of the farmer-lender mediation program); **H.F. 497** (Mediation grant to create more mediation access to those involved in housing disputes); **H.F. 1375** (Repealed old arbitrator selection procedure for peace officer disputes and provides for new selection scheme); **S.F. 3229** (Establishes dispute procedures for transport company drivers).

MISSISSIPPI♣

Bills Enacted: **None**

Bills Pending: **None**

MISSOURI◊

Bills Enacted: **None**

Bills Pending: **S.B. 256** (Courts may refer cases to non-binding ADR. Parties have 30 days to either choose a different ADR method by agreement, delay the process to a later date, or request an exemption if ADR is unlikely to resolve the issue. It includes an ADR continuing into discovery. Also, it requires neutral facilitators and confidentiality).

MONTANA◊

Bills Enacted: **None**

Bills Pending: **None**

NEBRASKA◊

Bills Enacted: **None**

Bills Pending: **None**

NEVADA◊

Bills Enacted: **A.B. 3** (The bill increases the arbitration threshold from $50,000 to $100,000. It also enhanced arbitrator compensation. It allows the arbitrator to award attorney's fees. It also promotes the use of ADR methods).

Bills Pending: **None**

NEW HAMPSHIRE◊

Bills Enacted: **None**

Bills Pending: **H.B. 532** (The bill revises RSA 186-C:23 to enhance alternative dispute resolution options in special education matters between parents and schools. The bill is tailored to include dispute resolution in IEP team meetings).

NEW JERSEY◊

Bills Enacted: **None**

Bills Pending: **None**

NEW MEXICO◊

Bills Enacted: **None**

Bills Pending: **H.B. 418** (Act relating to mobile homes, specific to dispute resolution it eliminates a party's option to terminate a dispute resolution process); **S.B. 287** (Bill requires ADR before a party bringing a civil suit for a violation of the recreational vehicle manufacturer and dealer act).

NEW YORK◊

Bills Enacted: **None**

Bills Pending: **S.B. 4123** (Bill amends the financial service law as it pertains to health benefits to ensure the plans fall independent dispute resolution processes); **A.B. 3885** (Bill amends the financial service law as it pertains to health benefits to ensure the plans fall independent dispute resolution processes); **A.B. 8297** (Allows ADR to be used to help parties reach child support agreements outside of formal court. Establishes an ADR Pilot Program. There is an ADR referral process where the judge can inform parties of ADR. If ADR would be inappropriate or an agreement is not reached, then the case proceeds to formal hearings).

NORTH CAROLINA◊

Bills Enacted: **None**

Bills Pending: **None**

NORTH DAKOTA◊

Bills Enacted: **None**

Bills Pending: **None**

OHIO◊

Bills Enacted: **None**

Bills Pending: **None**

OKLAHOMA◊

Bills Passed: **H.B. 2261** (Compact includes provisions for ADR to handle conflicts related to licenses and practices among the states); **S.B. 453** (The court can refer parties to ADR, while also considering objections to referral. The parties can also agree to partake).

Bills Pending: **H.B. 1366** (The commission has the authority to resolve disputes with ADR. The Commission can establish binding resolution procedures); **S.B. 765** (The commission has the authority to resolve disputes with ADR. The Commission can establish binding resolution procedures).

OREGON[◊]

Bills Enacted: **None**

Bills Pending: **None**

PENNSYLVANIA[+]

Bills Enacted: **None**

Bills Pending: **H.B. 482/S.B. 571** (Authorizes the State to join the Occupational Therapy Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution); **S.B. 604/H.B. 668** (Authorizes the State to join the Counseling Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution); **S.B. 583/H.B. 554** (Authorizes the State to join the Social Work Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution); **H.B. 365/S.B. 331** (Authorizes the State to join the Cosmetology Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution); **S.B. 219** (The Youth Court Pilot Program is a restorative justice approach to school discipline and the juvenile justice system. The bill establishes a grant to fund six youth court programs. The Youth Courts are operated by students with professional guidance, and they focus on restorative sanctions rather than traditional punishment. This could range from a mediated conversation between the kids in dispute, to behavior classes and other restitution-based alternatives); **S.B. 81/H.B. 1127** (Authorizes the State to join the Dentist and Dental Hygienist which requires states to settle regulatory disputes using mediation or binding dispute resolution); **H.B. 787** (Authorizes the State to join the Interstate Dental and Dental Hygiene Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution).

RHODE ISLAND[+]

Bills Enacted: **None**

Bills Pending: **H. 5067/S. 0345** (Authorizes the State to join the Interstate Dietitian Licensure Compact which requires states to settle regulatory disputes using mediation or

binding dispute resolution); **H. 5135/S. 1059** (Amend ADR procedures for disputes between cities and public sector unions (cops, firefighters, etc.). Streamlines the timing and clarifies when arbitration is permissible. Lists factors to be considered by the arbitration board: comparison of wages across different sectors, comparison of conditions, comparisons across different cities, considerations of public welfare, peculiarities of employment (such as hazards); **H. 5132/S. 0959** (Makes it unlawful for employers to require mediation or arbitration for disputes arising under the act. The standard for psychological abuse in the workplace is when the abuse creates a toxic work environment in which a reasonable person would find performance of regular work duties intolerable based on the totality of the circumstances); **S. 0353** (Extends stay of arbitration allowance to 180 days from 20 days, invalidates any contract provision that penalizes a party for seeking representation during a suit, and requires arbitrators to provide notice to a party defaulting for a failure to pay fees).

SOUTH CAROLINA[+]

Bills Passed: **H. 3752** (Authorizes the State to join the Social Work Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution).

Bills Pending: **None**

SOUTH DAKOTA[+]

Bills Passed: **H.B. 1144** (Authorizes the State to join the Social Work Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution).

Bills Pending: **S.B. 198** (This bill overhauls the state's eminent domain process by requiring a prospective condemner to engage in good faith mediation with affected property owners before initiating condemnation proceedings. The condemner must provide 90 days' notice, cover the cost of mediation, and include in the notice a request for mediation and a list of potential mediators. This strongly centers ADR, particularly mediation, as a mandatory step to try resolving disputes without litigation over property takings).

TENNESSEE+

Bills Enacted: **None**

Bills Pending: **None**

TEXAS+

Bills Enacted: **S.B. 777** (This bill amends the Local government code to provide for other forms of impasse resolution for public sector, municipal strikes. The bill removes arbitration and replaces it with "impasse resolution" for municipalities, specifically mandating it for fire fighters. Arbitration is not compulsory in most cases, but if a municipality is between 950,000 and 1,050,000 then impasses are subjected to mandatory arbitration. The party requesting the arbitration to take place must provide written notice to the other party specifying the issues in dispute. Then all parties must submit to arbitration all issues in dispute no later than 45 days after receiving notice. Within 5 days of the original arbitration request, each party selects one arbitrator and notifies the other party. Within 10 days of the request, the 2 arbitrators must find a neutral third arbitrator to form the 3-arbitrator panel. If the arbitrators can't agree, then the parties request a nationwide list of nine neutral arbitrators from the AAA, and the parties must agree on one from the list. If they can't reach an agreement within five days, they alternate striking names off until the last arbitrator is standing. The third selected will preside over the board. The award may be reviewed by the state district court. Arbitration is based on multiple factors looking at wages and other benefits across municipalities and the peculiarities of that occupation, as well as other factors); **S.B. 2544** (The bill amends the Texas Insurance code to put a time limit on requests for mandatory mediation in disputes between providers and health benefit plan administrators. It specifies that the time limit for the request is within 180 days of the initial payment for services to the provider); **S.B. 2269** (This bill amends the Texas Government Code to restrict the long-term care disputes commission from retaliating against a facility appealing an adverse decision by the commission or filing another action to counter the commission's decision. It also clarifies that the commission may not penalize a facility for a violation arising out of the same action that is the subject of a penalty imposed prior. Finally, it specifies that a decision under an informal dispute resolution process

made by the contracted adjudicator is binding on the commission and cannot be overturned by the commission).

Bills Pending: **None**

Bills Vetoed: **H.B. 705** (Authorizes the State to join the Counseling Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution).

UTAH[+]

Bills Enacted: **S.B. 0317** (Authorizes the State to join the Dietician Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution); **H.B. 0267** (This bill preserves the public sector unions in Utah for firefighters, police officers, and teachers, but it bans any state entity, including municipal organizations, from recognizing the union as a bargaining agent. Public sector employees may now opt out of paying union dues as well).

Bills Pending: **None**

VERMONT[+]

Bills Enacted: **S. 0045/ H.0407** (This bill amends its nuisance law to prevent nuisance suits against the agricultural industry. The purpose is to protect farmers who are performing reasonable agricultural activities. The person claiming protection must have good standing with the state. Importantly, the bill requires that any agriculture-related nuisance suit first go through mediation. It prevents a plaintiff from bringing an action unless the plaintiff and defendant have at least once attempted to resolve the dispute via mediation. If mediation is unable to resolve the dispute, then the parties may agree to submit the dispute for binding arbitration).

Bills Pending: **H. 0427** (This bill amends Vermont's law on medical malpractice action, limiting damages and instituting a panel to screen cases before they go to court. All parties to a claim may agree to submit a claim to the binding determination of the panel, or both parties may agree to bypass the panel for any reason. The panel cannot consider defenses without the approval of both parties. The panel also must attempt to mediate the dispute between the parties before proceeding to its findings);

H. 0325 (Authorizes the State to join the School Psychologist Interstate Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution); **H. 0296** (Authorizes the State to join the Dietician Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution); **H. 0047** (Authorizes the State to join the Dentist and Dental Hygienist Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution).

VIRGINIA[+]

Bills Enacted: **H.B. 2448** (Authorizes the State to join the Interstate Massage Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution).

Bills Pending: **None**

WASHINGTON[+]

Bills Enacted: **H.B. 1023** (Authorizes the State to join the Cosmetology Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution); **S.B. 5686** (This bill first authorizes unit owners to contact a housing counselor to assist them by preparing the unit for meetings with the creditor, advising on what is necessary when seeking a repayment plan, alternatives to foreclosure, and providing other advice and guidance as necessary. It also creates a new dispute resolution process. The housing counselor or debtor's attorney can request mediation, but they first must hold a meet and confer session before mediation to see if the dispute can be resolved there. Then the housing counselor or attorney determines whether mediation is an appropriate next step).

Bills Pending: **None**

WEST VIRGINIA[+]

Bills Enacted: **None**

Bills Pending: **None**

WISCONSIN+

Bills Enacted: **None**

Bills Pending: **S.B. 190/A.B. 193** (Authorizes the State to join the Respiratory Care Interstate Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution); **S.B. 189/A.B. 189** (This bill amends the process for divorce in Wisconsin. Instead of having to hold a court hearing to grant the separation/divorce, parties may submit to the court adjudication via final affidavit. Before submission of the affidavit, both parties must be represented by counsel or must have worked with a mediator, and the mediator must draft the parties' signed stipulation); **S.B. 74/A.B. 80** (Authorizes the State to join the Social Work Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution); **S.B. 71/A.B. 45** (Authorizes the State to join the Dietician Licensure Compact which requires states to settle regulatory disputes using mediation or binding dispute resolution).

WYOMING+

Bills Enacted: **S.F. 0106** (This law changes provisions relating to vehicle manufacturers and a dealers disputes related to rates. If the manufacturer contests the rate, then the dealer and manufacturer shall participate in mediation. After 60 days the mediation process will terminate unless extended by mutual consent. If this 60-day period expires, then the dealer may bring a civil action against the manufacturer for the unpaid rate).

Bills Pending: **None**